

or IIED, there are simply no facts alleged as to Sussley other than the belief that either he or FIV served as the broker for Madrigal. (Complaint, ¶ 14.)

Plaintiffs' sixth cause of action is a demand for arbitration pursuant to the "operative escrow contract." (Complaint, ¶ 60.) CCP § 1281.2 allows a party to bring a "petition" to compel arbitration pursuant to a written agreement. While technically incorrect stylized as a "cause of action", I cannot find any authority that prevents a petition to compel arbitration from being brought along with a substantive complaint.

Upon the petition of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

As currently plead, the complaint fails to meet any of the above stated requirements as to Sussley, or any of the other defendants for that matter. The court should thus SUSTAIN the demurrer to the sixth cause of action, with 30 days leave to amend.

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CASE #	CASE NAME	HEARING NAME
CVME2511978	TOM VS MADRIGAL	MOTION TO STRIKE COMPLAINT ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF TOM

Tentative Ruling: See Tentative on Demurrer